

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Information Technology Procurement Office (ITPO)
Justification for an Exception to Fair Opportunity
NASA All-up Unified Software Renewal

1. Nature and/or description of the action being approved (FAR 16.507-6(d)(2)(ii):

This justification documents the basis for issuing an order under Minburn Technology Group's Solutions for Enterprise-Wide Procurement (SEWP) V contract NNG15SD34B using an exception to the Fair Opportunity process.

2. Description of the supplies or services required to meet the agency's needs (including the estimated value) (FAR 16.507-6(d)(2)(iii)):

- This action is a firm-fixed price delivery order for the NASA All-up Unified Support Renewal. This requirement is a comprehensive, enterprise-wide service model that delivers seamless support across the entire Microsoft technology ecosystem cloud, on-premises, security, productivity, and development platforms.
- The total estimated price of the proposed order is [REDACTED].
- The estimated period of performance is May 01, 2026 through April 30, 2027.

3. Identification of Exception to Fair Opportunity (FAR 16.507-6(d)(2)(iv)):

- ☐ FAR 16.507(b)(1): The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.
- ☐ FAR 16.507(b)(2): Only one awardee is capable of providing the supplies or services at the level of quality required because the supplies or services ordered are unique or highly specialized.
- ☒ FAR 16.507(b)(3): The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.
- ☐ FAR 16.507(b)(4): It is necessary to place an order to satisfy a minimum guarantee.
- ☐ FAR 16.507(b)(5): For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source.
- ☐ FAR 16.507(b)(6): The order satisfies one of the exceptions permitting the use of other than full and open competition listed in 6.103 (10 U.S.C. 3406(c)(5)). **Note:** The public interest exception must not be used unless Congress is notified in accordance with 10 U.S.C.

3204(a)(7).

Supporting Rationale:

Minburn Technology Group currently provides the Microsoft Unified Support Enterprise Agreement (EA). NASA requires continued licensing and use of the Microsoft Unified Support EA products and services to support enterprise-wide productivity, collaboration, cybersecurity, and compliance capabilities.

This agreement serves as the foundation for how Microsoft products and support are provisioned, managed, and funded across the Agency. The broad, portfolio-wide coverage of Microsoft technologies—spanning Azure, Microsoft 365, Windows, server platforms, security tools, and developer environments—is exactly what Microsoft Unified Support is designed to enable. Unified Support is Microsoft’s enterprise-level service model that delivers 24/7 incident response, problem resolution, proactive guidance, and technical advisory services across every Microsoft product an organization uses, without restricting coverage to specific workloads or technologies. It provides the operational and contractual framework that ensures cloud services, on-premises systems, productivity tools, security platforms, and development environments are all supported under a single, comprehensive support umbrella.

Microsoft Unified Support is unique because it is not a standalone product but a comprehensive, enterprise-wide service model that delivers seamless support across the entire Microsoft technology ecosystem to include cloud, on-premises, security, productivity, and development platforms alike. Unlike workload specific support plans such as Azure Support or Microsoft 365 Admin Support, which are limited to individual product families, Unified Support provides 24/7 incident response, problem resolution, proactive guidance, and direct escalation into Microsoft’s engineering teams for every Microsoft service an organization uses under a single contractual framework. While several third-party providers—such as US Cloud, SoftwareONE, Insight, CDW, Rackspace, and SHI—offer Microsoft-related support services, their coverage is limited to the environments they manage and they cannot provide guaranteed, structured escalation into Microsoft engineering. This combination of enterprise-wide scope, deep technical access, and integration with an organization’s EA distinguishes Unified Support from both Microsoft’s own product-specific support tiers and any third-party alternatives, ensuring consistent, reliable, and comprehensive support across the full Microsoft stack.

Awarding Microsoft Unified Support to Minburn Technology Group is necessary because the existing EA with Minburn serves as NASA’s consolidated, agency-level contractual vehicle governing Microsoft licensing, support entitlements, and pricing. Unified Support is structurally tied to this EA, relying on its licensing baselines, consumption metrics, and enterprise-wide coverage model. Moving this requirement to another reseller would require restructuring or fragmenting the EA, an action that is neither administratively nor contractually feasible without significant disruption. Such a break in continuity would introduce operational risks, including disruption to ongoing Microsoft support services, loss of established escalation pathways, potential gaps in coverage for mission-critical systems, and increased complexity in vendor coordination and accountability—risks that are unacceptable given NASA’s reliance on Microsoft technologies for mission and enterprise operations. Additionally, the current EA provides enterprise-level pricing, negotiated discounts, and cost efficiencies based on NASA’s aggregated usage; shifting

Unified Support outside this agreement would eliminate these advantages, potentially create duplicate or overlapping costs, require rebaselining of licensing and support fees, and introduce new administrative burdens associated with contract restructuring.

NASA relies on Microsoft Unified Support as a mission-critical service that ensures the continuous availability, security, and performance of the Microsoft technologies that underpin Agency mission, engineering, and enterprise operations. Unified Support provides NASA with 24/7 incident response, structured escalation pathways, and specialized technical advisory services for Azure workloads, Microsoft 365 collaboration platforms, identity and access management services, and the on-premises server environments that enable mission planning, scientific data processing, communications, and essential administrative functions. Because Unified Support is tightly integrated with EA licensing data, user counts, and enterprise-wide configuration baselines, the EA reseller plays a central role in activating, managing, and maintaining these support entitlements. Minburn Technology Group, as NASA's current EA reseller, is fully embedded in the Agency's Microsoft support ecosystem and aligned with Microsoft's established processes, tools, and escalation channels. Introducing a different reseller would fragment accountability, disrupt governance, and require extensive re-onboarding, entitlement revalidation, and coordination changes that would delay or degrade support services essential to mission continuity. Given the structure of NASA's existing EA, the operational and financial risks associated with fragmenting that agreement, and the critical dependence of NASA's mission and enterprise systems on uninterrupted Unified Support, Minburn Technology Group is the only responsible source capable of providing continued support without unacceptable disruption, cost impact, or risk to mission operations.

4. Determination that the anticipated cost to the Government will be fair and reasonable (FAR 16.507-6(d)(2)(v)):

The Contracting Officer's signature on this justification indicates that the anticipated cost to the Government will be fair and reasonable. Pricing for Microsoft NASA All-up Unified Support was previously evaluated and determined to be fair and reasonable under the existing enterprise licensing agreement.

Prior to the execution of the delivery order, the Contracting Officer will perform a price analysis to confirm that the final negotiated price remains fair and reasonable. In accordance with FAR 16.507-6(d)(2)(v), price analysis will include a comparison of proposed pricing with current contract pricing for the same Microsoft licensing products, as well as comparison with similar requirements, historical pricing, and available market information.

The proposed pricing will also be compared directly with the Government's current pricing for identical Microsoft NASA All-up Unified Support to verify consistency with previously negotiated rates. Because this action represents a continuation of the same services and licensing structure, comparison with current contract pricing provides a reliable basis for determining price reasonableness.

5. Other Facts supporting the justification (FAR 16.507-6(d)(2)(vi)):

None

6. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made (FAR 16.507-6(d)(2)(vii)):

The CO will continue to examine the market in the future for alternative solutions or new sources before executing any subsequent acquisitions for the same requirements.